CRIME SCENE REPORT

Fatema T Johra

By submitting this assignment, I certify I have abided by all requirements of the GMU honor code. I certify that this is entirely my own work, no unauthorized sources have been used, and all sources used have been properly cited.

Search Warrant

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10900 University Blvd.
Manassas, VA 20110

SEARCH AND SEIZURE WARRANT

To: Any authorized law enforcement officer

An application by a federal law enforcement officer or an attorney for the government requests the search of the following person or property located in the Eastern District of Virginia.
(identify the person or describe the property to be searched and give its location):

Joseph K. Smith, a suspected terrorist who we believe is operating a terrorist training facility at 10900 University Blvd. Manassas, VA 20110; Bull Run Hall, Room 257. we have probable reason to believe that there has been one or more communications made with three members of a suspected terrorist groups outside the US.

I find that the affidavit(s), or any recorded testimony, establish probable cause to search and seize the person or property described above, and that such search will reveal *(identify the person or describe the property to be seized):*

that the hard drives, removable devices, computers, phones, documents, and other electronic devices that are being used to communicate their plan outside the United States. Also, it will reveal that they might have instruments that facilitate criminal activities inside the building.

YOU ARE COMMANDED to execute this warrant on or before October 13, 2014 *(not to exceed 14 days)*
☑ in the daytime 6:00 a.m. to 10:00 p.m. ☐ at any time in the day or night because good cause has been established.

Unless delayed notice is authorized below, you must give a copy of the warrant and a receipt for the property taken to the person from whom, or from whose premises, the property was taken, or leave the copy and receipt at the place where the property was taken.

The officer executing this warrant, or an officer present during the execution of the warrant, must prepare an inventory as required by law and promptly return this warrant and inventory to Rebecca Tenally
(United States Magistrate Judge)

☑ Pursuant to 18 U.S.C. § 3103a(b), I find that immediate notification may have an adverse result listed in 18 U.S.C. § 2705 (except for delay of trial), and authorize the officer executing this warrant to delay notice to the person who, or whose property, will be searched or seized *(check the appropriate box)*
☑ for 7 days *(not to exceed 30)* ☐ until, the facts justifying, the later specific date of _____.

Date and time issued: 10/07/2014 9:30 pm

Judge's signature

City and state: Woodbridge,VA

Rebecca Tenally
Printed name and title

12:37 PM

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Case No.:	Date and time warrant executed:	Copy of warrant and inventory left with:
B123450000	10/13/2014 8:50 pm	Rebecca Tenally

Inventory made in the presence of :
Rebecca Tenally

Inventory of the property taken and name of any person(s) seized:

4 USB flash drive
The laptops
5 cellphones:
1 missing back cover (sprint motorola)
1 motorola flip phone
1 nextel
1 iPhone 5s white
1 Samsung Galaxy

The remains of the unknown device
Document IS-7 collected from trash
Visiting card
The envelops with the documents.

Inventory of person or property taken

Certification

I declare under penalty of perjury that this inventory is correct and was returned along with the original warrant to the designated judge.

Date: 10/28/2014

Group 3
Executing officer's signature

Group 3
Printed name and title

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Affidavit in Support of Criminal Complaint

I, Fatema T Johra, being duly sworn, do hereby state and depose as follows:

Introduction:

1. We are group three students with the IT 357-001 course at George Mason University, Prince Williams campus.

2. We are submitting this affidavit in support of a criminal complaint charging Joseph K. Smith with being involved with a violent act of terrorism against US. The information provided with this affidavit is based on a result of 6 months of surveillance on the building and wiretapping the communication between this building and suspect terrorist groups outside the United States from May 13, 2017, to October 13, 2014.

Overview of the Investigation:

1. The investigation to date indicates that an individual named, Joseph K. Smith is using a cellphone to communicate with three men in the name of Radolf Paine, Joe Parker and Shadin Walker. These men share the same name of three known terrorist belonging to the popular SAO terrorist group. During one of his conversations on August 8th, 2014, he referred to be working on the "plans" of what we believe could be an attack on the Pentagon. We believe that if we search his apartment and computer we will be able to find the "plans". During this conversation he named a terrorist, "Gary Shades" who is in FBI's most wanted list since June of 2006. We believe the computer he is using might contain this report he is going to send from the location we are going to search.

2. During the course of the investigation, we have consistently monitored his communication with suspected terrorist groups based outside the United States and each phone call lasted for a long period of time. The longest call being 2 hours and 37 minutes.

3. We have seen over the surveillance cameras that some individuals arrived in a pickup truck and brought what seems to be a desktop computer and multiple external hard drives and USB flash drives.

4. The security in the room that we believe he is operating from is considerably high, we have only seen him to enter and exit the room. The cleaning crew does not have access to the room, and he gave access to these certain individuals who arrived in the pick-up truck. Two Caucasian males around 6 feet in height, one with blonde hair and the other bald seem to have regular access to the room. Those two individuals in particular have

been seen frequently visiting the room

5. When Joseph K. Smith was in the room, we noticed that the web traffic is relatively high and when he is not in the room the web traffic is low. We have been able to acquire this particular information through their Internet Service Provider. However, the actual content of the data is still unidentified.

6. In one of the videos captured by the security camera, Smith brought numerous big boxes to his apartment. And by the way of his carrying, we believe he was carrying something heavy.

7. In one of the surveillance footages on September 14, 2014, at 9:49pm, we found that he was drawing peculiar structures what seems like a plan of a route to take to Pentagon. The Pentagon security camera has footage of a suspicious person, sharing similar physical structures to Smith, wandering around the city numerous times, and looking at the guards and security cameras.

8. On October 5th, 2014, at 7:00pm, Joseph K. Smith picked up 10 bags of fertilizer from Bobs home supply store. He was later seen carrying 10 bags of fertilizer into the apartment at 11:00pm the same day.

9. On October 6th, 2014, at 8:47pm a video surveillance footage revealed the suspect Joseph K. Smith being in an intense vocal confrontation with the blonde-haired individual mentioned in Paragraph 6 of this affidavit. Although, his name has not been confirmed as of yet, the suspect Joseph Smith has been continually heard referring to him as “Mickey”. The bald-headed individual mentioned in Paragraph 6 was not present at the time of this argument. The only understandable English sentence uttered during their entire argument was when Joseph Smith yelled at the individual identified as Mickey and said, “DO NOT RUIN EVERYTHING, MICKEY!” Joseph Smith seemed to be pacing around the room near one of his computer systems and pointing to it while yelling at Mickey in a foreign language.

10. On October 8th, 2014, at 9:43pm, Joseph K. Smith phone was wiretapped, and he was discovered speaking in code to a person with a foreign accent.

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Detailed Crime Scene Notes

On October 13, 2014, at 9:50 pm we got to the crime scene. After showing the search warrant we were allowed to enter the crime scene. Around 9:55pm our photographer started taking pictures from outside the crime scene. Then the photographer entered the crime scene area and started taking pictures. At 9:58pm our examiner/bagger also entered the crime scene. All other members of the investigation team stayed outside the crime scene area. The examiner then told the note takers about each piece of evidence in the crime scene. Looking at the crime scene, there were two laptops on the table that caught our attention first. One laptop was off and the other was turned on. The examiner started with the most volatile evidence, “the powered-on laptop”. She pointed out that the mouse of on the left-hand side of the laptop. Then she disconnected the network cable from the laptop and then saw a notepad open on the desktop with the words “We should blow stuff up” She immediately informed Abraham (photographer) who took pictures of the laptop screen then she removed the power cable and handed the laptop to Ashif and Michael (Collectors) to “Write Block” the evidence and make a backup before moving turning the laptop off. The evidence was contaminated as one of our collectors accidentally directly worked on the laptop before it was write-blocked and backed up. The second laptop, a silver Sony Vaio laptop was seized and bagged at 10:03pm. After that Katherine decided to seized all the mobile devices (phones) on the table. She first bagged the Motorola cellphone which was missing the back cover at 10:04pm. She handed the phone to Ashif, and he tagged the evidence put data and time on it and had Michael take a picture of the evidence. This procedure was done for all single items that were seized. During this time Altaf was sketching the crime scene. Katherine then bagged the other two cellphones on the table. After that she went after the other two mobile phones that were discovered during the initial scanning of the crime scene. The iPhone and Samsung Galaxy were hidden inside the file organizer. After that she seized the camera since she thought it might have some very crucial evidence. After that she bagged the 6 optical disks that were on the table. After that she bagged each flash drive separately and handed them to Ashif. Then it was time for looking into the trash can. At first the examiner was hesitant to look deep inside the trashcan however with the help of Abraham (photographer) they both looked at the trashcan entirely and found some documents that had names of some major landmarks in Washington D.C.. They immediately took pictures

and bagged the documents. Unfortunately, because of the time constraint we were not able to look inside the books as we later realized there were couple of optical devices hidden in there.

After moving all the collected evidence back to the lab for examination, we discovered numerous things that were related to a terrorist attack. There were files in the hard drive of the Sony Vaio laptop loaded with malicious software that Joseph K. Smith seemed to be transferring over the internet. One of the flash drives had details of how to make bombs and the details. The other flash drive had detailed plans of which areas in D.C. to attack. There were also other devices such as cameras, CD's, and cell phones that were found on the crime scene. This is just more valuable evidence that was found that supports the fact that Joseph K. Smith was trying to cause a terrorist cell attack.

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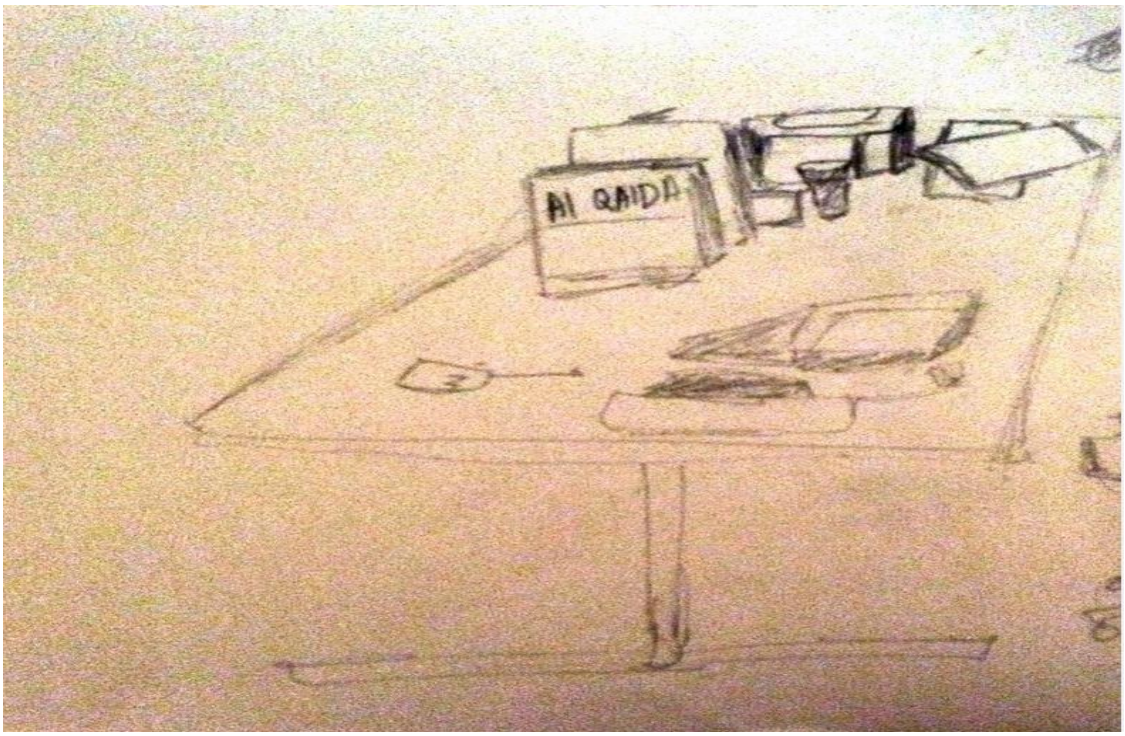
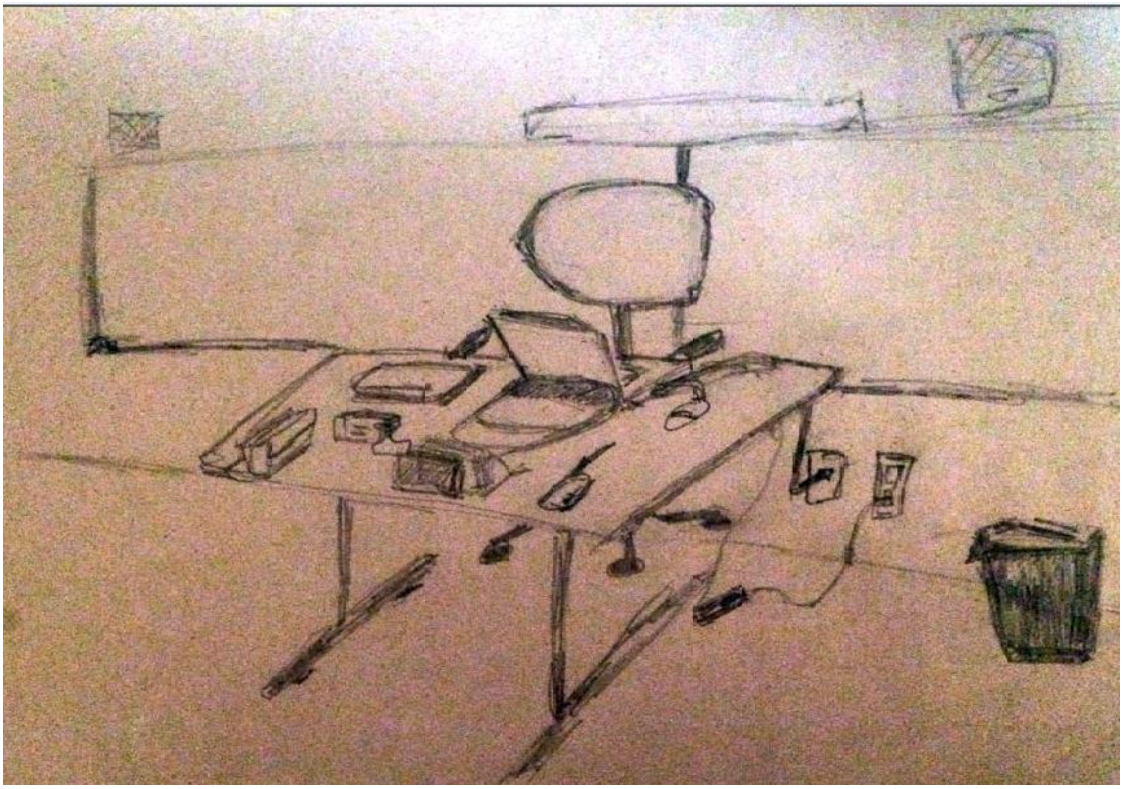
Crime Scene Sketch:





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Evidence log:

- 2 Laptops
  - 1 was turned on and connected to a charger and Ethernet Cable (Acer) EVD-001
  - 1 turned off (silver Sony Vaio) EVD-002
- 5 cellphones
  - 1 missing back cover (sprint Motorola) EVD-003
  - 1 Motorola flip phone EVD-004
  - 1 Nextel EVD-005
  - 1 iPhone 5s white EVD-006
  - 1 Samsung Galaxy EVD-007
- 1 camera EVD-008
- Multiple CDs and DVDs EVD-009
- 1 photo printer EVD-010
- 1 calculator EVD-011
- 1 notebook EVD-012
- 4 flash drives EVD-013
- 1 coffee mug (what appeared to have a SD card hidden at the bottom) EVD-014
- 4 books (2 of them Al Qaeda and Unholy Terror 2 of them maps of Northern Virgina and DC) we did not seize it though.
- Documents from trash can EVD-015
- Remains of a camera device EVD-016

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Chain of Custody log:

- Abraham (photographer) took a photo of the laptop which was on before Katherine (examiner) unplugged the network cable from the laptop. Abraham (photographer) took pictures of the laptop screen before Katherine handed the laptop with the evidence bag to our collector Ashif and Michael at 10:01pm. Due to an error we had contaminated the laptop and we sat it aside.
- Second laptop was bagged by Katherine at 10:03 pm and handed to Ashif who tagged the evidence and put it in the proper location to move it to the lab. A picture of the bagged and tagged evidence was taken by Michael.
- Examiner bagged Motorola cellphone which was missing the back cover at 10:04 pm and handed it to Ashif (collector) who tagged it and a picture of the evidence was taken by Michael.
- Katherine (examiner) bagged sprint Motorola cellphone at 10:05pm and handed to Ashif (collector) who tagged the bag a picture was taken by Michael (collector-Photographer) and the bag was stored by Ashif to be moved to forensics lab.
- Examiner bagged Nextel cell phone at 10:06pm and handed it to Ashif who tagged the bag and stored it after Michael took a photo.
- Katherine bagged the iPhone at 10:07pm and handed it over to Ashif. Ashif tagged the bag and stored it after Michael took a picture.
- Katherine bagged the Samsung Galaxy phone at 10:07pm and handed it to Ashif. He tagged the evidence and Michael took a picture.
- Examiner bagged the digital camera at 10:08pm and handed it to Ashif who tagged the bag and a picture was taken by Michael.
- Examiner bagged 6 optical disks found on the table at 10:09pm and handed them to Ashif who tagged the bag and let Michael take a picture then stored it.
- Katherine seized the photo printer at 10:09pm and handed it to Ashif. A picture was taken by Michael.
- Katherine bagged the calculator at 10:10pm and handed it over to Ashif to tag the bag and stored it. Michael took a picture of the evidence after it was tagged.
- Katherine bagged the address book (notebook) at 10:11pm and handed it over to Ashif.

- Katherine bagged 4 flash drives each in a separate bag and handed them over to Ashif. He tagged the bags and stored them after Michael took pictures. 10:11pm - 10:15pm
- Katherine bagged the coffee mug at 10:15pm and handed it to Ashif.
- Katherine and Abraham both took a look at the trash can and found some relevant documents took pictures of them, bagged them and handed them over to Ashif. He tagged the bag. 10:15pm-10:20pm
- Katherine took the remains of a camera device and bagged them all. She handed to Ashif who tagged and Michael took a picture 10:21pm

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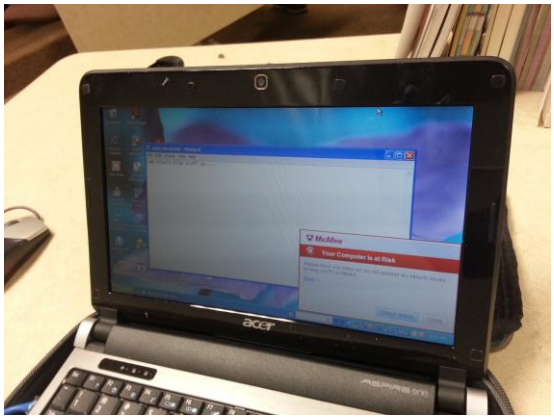
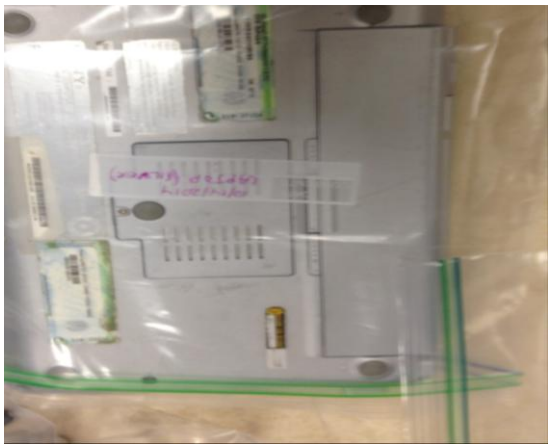
Evidence Pictures:

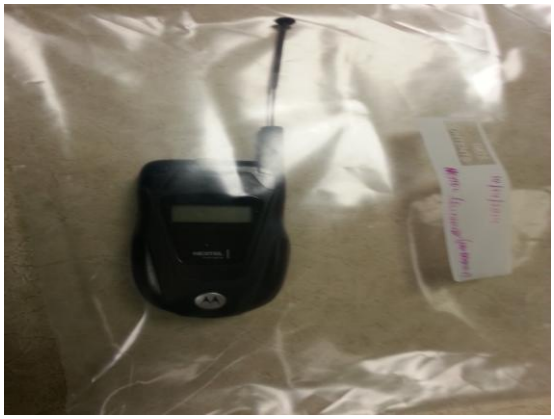
1. Acer Laptop which was on before and after it was bagged and seized. EVD-001



2. Sony Vaio Laptop before and after it was bagged and seized EVD-002

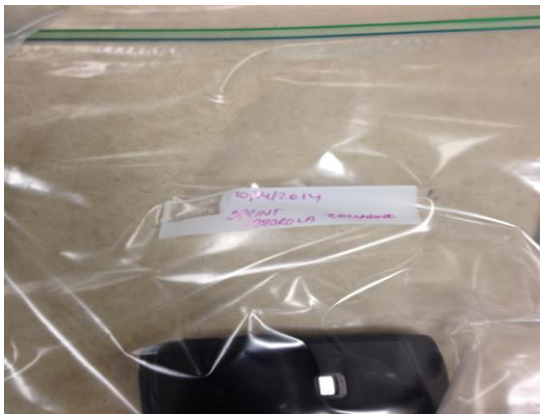


3. Sprint Motorola phone with missing back cover before and after it was bagged. EVD-003



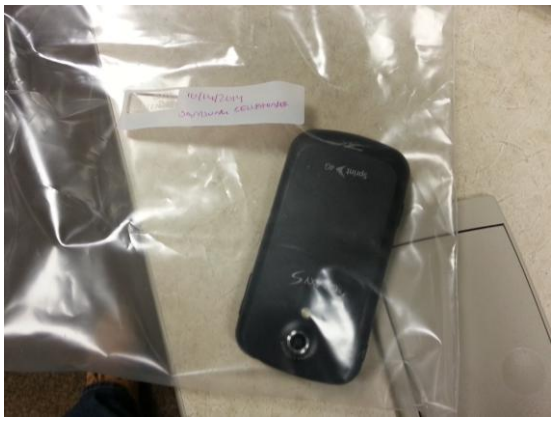
4. Motorola flip phone before and after it was bagged EVD-004

5. Nextel phone before and after it was bagged EVD-005

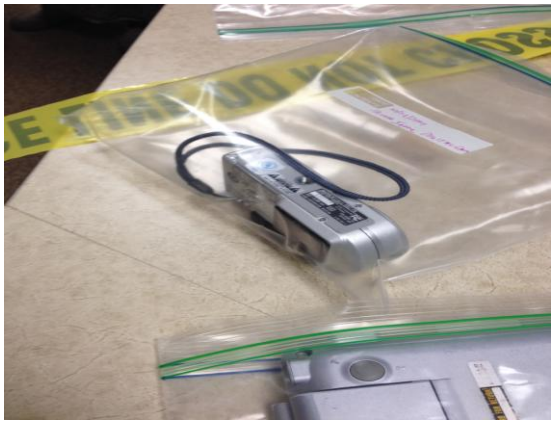


6. iPhone before and after it was bagged EVD-006

7. Samsung Galaxy before and after it was bagged EVD-007

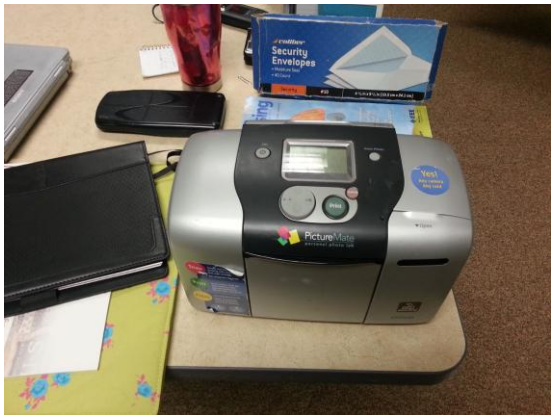


8. Camera before and after it was bagged and seized. EVD-008

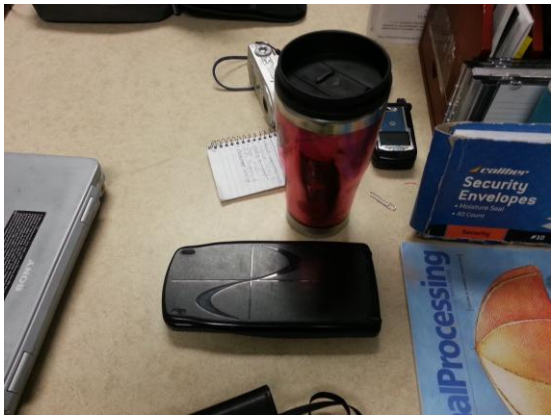


9. Optical discs before and after they were bagged. EVD-009

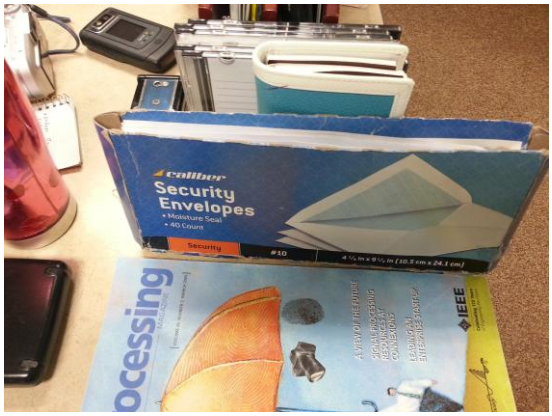
10. Photo printer before and after it was bagged and seized. EVD-010



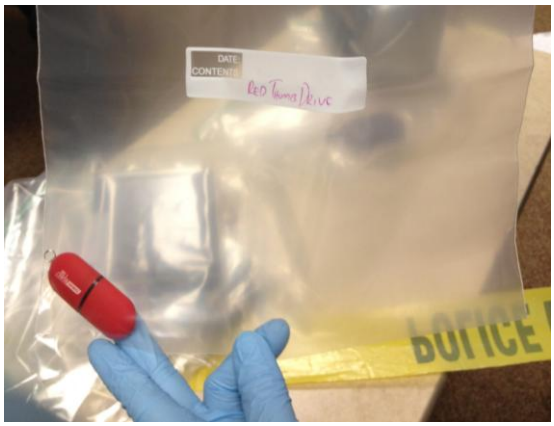
11. Calculator before and after it was bagged. EVD-011



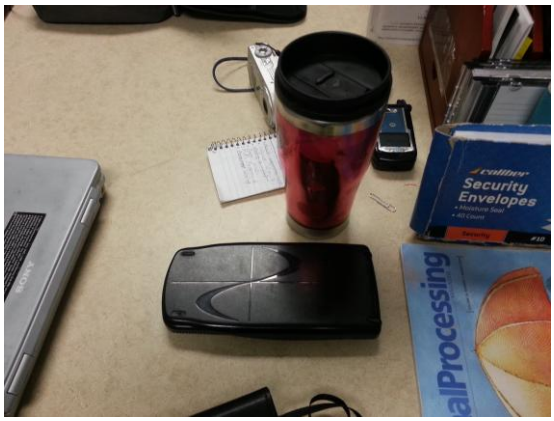
12. Address book before and after it was bagged and seized. EVD-012

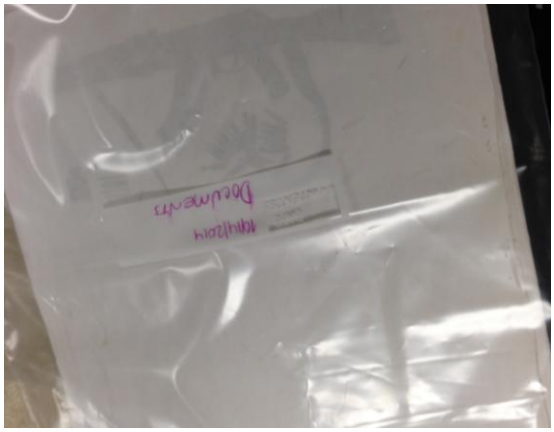
13. Sample of one flash drive before and after they were all found and seized EVD-013

14. coffee mug (what appeared to have a SD card hidden at the bottom) EVD-014

	No pictures were taken.

15. Documents from trash can before and after they were seized. EVD-015



16. Remains of a camera device before and after they were seized. EVD-016

What did we learn?

- The most volatile evidence should be handled first according to the order of volatility. If a computing device is connected to the internet, it would be wise to check if it can be disconnected without any other complications.
- When a computer is on, make sure to write block it and take a back up on the spot to an external hard drive and turn the system off to avoid contaminating the evidence.
- The most important lesson was that a detective or officer in charge of examining the evidence is very restricted to the search warrant. He/she cannot search for anything that is not mentioned in the search warrant. He is not authorized to do so, even if it is related to the case.
- When requesting a search warrant, the investigators have to be sufficiently broad in terms of what they believe should be granted to search.
- The search warrant has the capability to completely define the investigation as we learnt firsthand. Even though evidence is helpful in proving the guilt of the accused, if not mentioned in the search warrant cannot be used against him/her.
- There must be a clear and concise procedure of performing a search.
- Roles of every investigator present in the crime scene must be clearly defined.
- Proper protocols and procedures must be thoroughly followed during the crime scene investigation.
- There must be clear and concise communication between the investigators, and they must be able to perform their tasks individually as well as communicating with the rest of the team.

What would we do differently?

- We were not very professional at seizing the evidence. We seized blank CDs before determining if they had any content written to it.
- We seized the coffee mug thinking that it had what appeared to be an SD card, whereas it was only an adapter without any evidence or content in it. We should've investigated the mug thoroughly before we bagged and tagged it as evidence.
- We needed to be more informed and aware as to how to deal with live data. Proper procedure to secure a device to a live network should have been followed. We contaminated the laptop that was turned on by trying search for evidence without writing blocking the evidence. This cannot be done.
- We, in no circumstance can contaminate evidence. If we do, the evidence will have no value and cannot be used in any part of the investigation which may cause catastrophic consequences.
- We needed to be broader in our search warrant request. The wording of our request in the initial search warrant request really limited our capacity and scope during our Crime Scene search as we were not able to seize a number of items which could have been very helpful in the course of the investigation.

- We needed to communicate a little better during the investigation. If we had better communication between all of us, we could have avoided contaminating the laptop that was still turned on during the Search.

- Summary of any questionable character findings (what you investigated, where you looked, etc.)

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Background Checks:

We performed background checks on all of the agents investigating the crime scene. This was contracted through Intelli Corp. Additionally all members of team 3 were subject to additional screening using publicly available information on www.peoplefinder.com, www.facebook.com, and www.pacer.gov. Intelli Corp allowed us to confirm that address records and personal records matched the records that the agent provided. Any potential conflicts of interest are required to be reported to Senior Investigator. Additionally, our department uses public information to detect any potential conflicts of interest. www.peoplefinder.com was able to retrieve certain information on some agents, however, some records that were pulled from the site gave approximate data, not precise. We then utilized the www.facebook.com to verify probing information such as what does the individual like, what groups he is currently in, verify Date of birth with lifetime events, how many friends, and who are the individual's friends. We also gained information on the agent's marital status. Team 3 used www.pacer.gov to screen for any previous criminal or civil violations which could represent a conflict of interest in the investigation. This is a standard procedure for investigative teams to follow, because it ensures that all discovered evidence cannot be suppressed due to one agent's history. All agents of Team 3 cleared their background checks before being permitted to perform the crime scene investigation.